

Court No. - 29

Case :- WRIT - C No. - 28201 of 2019

Petitioner :- Raj Bahadur Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ajeet Kumar Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard Sri Ajeet Kumar Singh, learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for respondent No.3.

The petitioner is aggrieved by the recovery citation dated 22.06.2019 for a sum of Rs. 4,53,271/- as electricity dues.

The argument is that the aforesaid recovery has been issued without serving a copy of the provisional assessment.

Sri Mahboob Ahmad, learned counsel for respondent No.3 submits that the provisional assessment as per the checking report was sent to the petitioner by registered post and as petitioner failed to raise any objections, it was treated to be final as per the order dated 15.05.2019, a copy of which has been enclosed by the petitioner himself as annexure-4 to the writ petition.

The aforesaid final assessment is appellable under Section 127 of the Electricity Act, 2003.

The petitioner is free to offer for the payment of the dues to the Executive Engineer and to get the installments fixed, if any by invoking the provisions of clause 6.14 of the U.P. Electricity Supply Code, 2005.

In the event, any such application is moved, the Executive Engineer shall consider it in accordance with law and also the release of the tractor of the petitioner conditionally.

In view of the above alternate remedy and the observations, the petition stands **disposed off**.

Order Date :- 16.9.2019

Nirmal Sinha